

UNITED STATES DEPARTMENT OF AGRICULTURE
BEFORE THE SECRETARY OF AGRICULTURE

In re:

William Brackston Lee, III, an
individual, d/b/a Laughing Valley Ranch

Respondent.

AWA Docket No. 24-J-0026

DECISION AND ORDER

Appearances:

Thomas Bolick, Esq., with the Office of the General Counsel, United States Department of Agriculture, Washington, DC, for the Complainant, the Administrator for the Animal and Plant Health Inspection Service (“APHIS”); and

Respondent William Brackston Lee, III, an individual, doing business as Laughing Valley Ranch, appearing on behalf of himself (appearing pro se).

Before Administrative Law Judge Tierney Carlos.

Introduction and Summary of Decision

The Administrator, Animal and Plant Health Inspection Service (“APHIS”), United States Department of Agriculture (“USDA”), Complainant, instituted this administrative enforcement proceeding under the Animal Welfare Act, as amended (7 U.S.C. §§ 2131 *et seq.*) (“AWA”), by filing a Complaint alleging that Respondent, William Brackston Lee, III, an individual doing business as Laughing Valley Ranch (hereinafter referred to as “Respondent”), violated the AWA and regulations issued thereunder (9 C.F.R. § 1.1 *et seq.*) (“Regulations”).

The Complaint alleged Respondent is an exhibitor as the term is defined in the AWA and, that at all times material to the Complaint, Respondent’s Class C “Exhibitor” license No. 84-C-0088 was suspended.¹ The Complaint also alleged that at all times alleged in the Complaint, “Respondent failed to obey the cease and desist order made by the Secretary under section 2149(b) of the Act (7 U.S.C. § 2149(b))” in *Lee*, AWA Docket No. 14-0021 (U.S.D.A. Apr. 22,

¹ 7 U.S.C. § 2132(h).

2021) (Consent Decision and Order), and alleged violations of the AWA occurring during a period lasting from November 26, 2021 through February 6, 2022 arising from the exhibition of reindeer at various events.

A virtual hearing was conducted February 25 through 28, 2025.

Based on careful review of the record before me, I find that Respondent violated the AWA on 13 occasions by exhibiting animals subject to the AWA without a valid license and while subject to a cease-and-desist order. As set out below, I also find that Respondent's business is small in size, that although Respondent may have acted in good faith, the gravity of such violations was great, and that Respondent has a history of previous violations. Therefore, Respondent is ordered to cease and desist from violating the AWA and the Regulations and standards issued thereunder, and Respondent is permanently disqualified from obtaining an AWA Exhibitor's license.

Jurisdiction and Burden of Proof

Congress provided for enforcement of the AWA by the Secretary of Agriculture.² Regulations promulgated under the AWA are in the Code of Federal Regulations, Part 9, sections 1.1 through 3.142. Among other things, exhibitors are required to comply with the AWA and Regulations.

The burden of proof is on Complainant, APHIS.³ The standard of proof applicable to

² 7 U.S.C. § 2151.

³ 5 U.S.C. § 556(d). *See also Terranova*, 2019 WL 4580195, at *15–16 (U.S.D.A. 2019) (stating: “Complainant bears the initial burden of coming forward with evidence sufficient for a *prima facie* case” and that, because Complainant established a *prima facie* case, “[t]he burden of production then shifted to Respondents to rebut Complainant’s *prima facie* showing. Shifting burdens of production are necessary tools in developing a full and complete record and in assessing the weight to assign evidence”) (citing among other things 5 U.S.C. § 556(d); *JSG Trading Corp.*, 57 Agric. Dec. 640, 709-710, 721-22 (U.S.D.A. 1998); *Big Bear Farm, Inc.*, 55 Agric. Dec. 107, 109 n.3 (U.S.D.A. March 15, 1996); *Davenport*, 57 Agric. Dec. 189, 223 (U.S.D.A. 1998) (“The burden of proof in disciplinary proceedings under the Animal Welfare

adjudicatory proceedings under the Administrative Procedure Act,⁴ such as this one, is the preponderance of the evidence.⁵

Applicable Statutory Provisions

Congress enacted the AWA, in relevant part, “to insure that animals intended for . . . exhibition purposes . . . are provided humane care and treatment.”⁶ To achieve this purpose, Congress provided that the Secretary of Agriculture “shall make such investigations or inspections as he deems necessary” to determine violations of the AWA and shall establish rules and regulations as he deems necessary to achieve the purpose of the AWA.⁷

The corresponding Regulations mandate, in pertinent part, that any person operating as an exhibitor must have a valid license.⁸ The AWA states that “the act, omission, or failure of any person acting for or employed by a . . . an exhibitor . . . shall be deemed the act, omission, or failure of such . . . exhibitor.”⁹ The AWA provides for civil penalties as well as suspension or revocation of AWA license if violation of the statute is found.

Act is preponderance of the evidence, which is all that is required for the violations alleged in the Complaint.”); *Hazardous Waste Treatment Council v. EPA*, 886 F.2d 355, 266 (D.C. Cir. 1989), *cert. denied sub nom. Am. Petroleum Inst. v. EPA*, 498 U.S. 849 (1990); *Bosma v. U.S. Dep’t of Agric.*, 754 F.2d 804, 810 (9th Cir. 1984); *NLRB v. Mastro Plastics Corp.*, 354 F.2d 170, 176 (2d Cir. 1965), *cert. denied*, 384 U.S. 972 (1966)) (additional citations omitted)..

⁴ 5 U.S.C. §§ 551 *et seq.*

⁵ See *Herman & Maclean v. Huddleston*, 459 U.S. 375, 387-91 (1983) (holding the standard of proof in administrative proceedings is the preponderance of the evidence); see also *Davenport*, 57 Agric. Dec. 189, 223 (U.S.D.A. 1998) (“The burden of proof in disciplinary proceedings under the Animal Welfare Act is preponderance of the evidence[.]”).

⁶ 7 U.S.C. § 2131. See also *Animal Legal Defense Fund, Inc. v. Perdue*, 872 F.3d 602, 607 (D.C. Cir. 2017) (“Congress enacted the Animal Welfare Act in 1966 to ensure the humane treatment of animals used in medical research. In 1970, Congress amended the Act to cover animal ‘exhibitors’ a category that includes zoos.”) (internal citations omitted).

⁷ 7 U.S.C. § 2146(a).

⁸ 9 C.F.R. § 2.126.

⁹ 7 U.S.C. § 2139.

Procedural History

This case initiated with a complaint filed by Complainant APHIS on January 2, 2024. On January 23, 2024, Respondent replied to the Complaint via email to the Hearing Clerk's Office requesting a 30-day extension to seek counsel and file an answer, which was granted on January 24, 2024. On February 7, 2024, Respondent timely filed an answer via email to the Hearing Clerk's Office, generally denying all allegations. This case was thereafter assigned to Chief Administrative Law Judge Channing D. Strother on February 13, 2024. Chief Judge Strother issued an order setting deadlines for submissions on February 14, 2024. Complainant timely filed a list of witnesses and exhibits on April 15, 2024.

Chief Judge Strother held a telephone conference on August 7, 2024, where he addressed Respondent's failure to comply with the February 14, 2024 Order, and Respondent stated that he would comply as agreed during the call. During that call the parties agreed to a virtual hearing to be held February 25 through 28, 2025. On September 13, 2024, Respondent filed his list of witnesses and exhibits via email.

On February 10, 2025, Erica White entered an appearance on behalf of Complainant as co-counsel. A prehearing conference was held on February 18, 2025, and a virtual hearing was held February 25 through 28, 2025. Chief Judge Strother issued orders setting transcript corrections and briefing-schedule dates on February 27, 2025.

On May 7, 2027, Thomas Bolick filed an entry of appearance on behalf of Complainant and a motion for extension of Complainant's deadline for filing a post-hearing brief. On May 15, 2025, Chief Judge Strother issued an order granting Complainant's Motion for Extension and providing extensions for the full briefing schedule. Complainant timely filed its Post-Hearing Brief on May 28, 2025. However, Respondent failed to file a response. Chief Judge Strother held a virtual conference with the parties, during which Respondent was granted an extension to file

his answering brief and Complainant was given an extension to reply.

Respondent timely filed his Answering Brief on September 18, 2025, and Complainant timely filed its Reply Brief on November 19, 2025.

On January 15, 2026, this case was reassigned to the undersigned, Administrative Law Judge Tierney Carlos. I have reviewed the entire file, including the pleadings and motions, the transcripts of the hearing, the exhibits, and the post-hearing briefs.

Discussion

The Complaint alleged that Respondent, on his own or by and through his associates, violated the AWA and Regulations by exhibiting AWA-covered animals, specifically reindeer, on 13 occasions without holding a valid AWA license and while subject to an order suspending his license and ordering him and his associates to cease and desist from violating the AWA.

Complainant contends that Respondent, acting either in his own capacity or through his associates, as alleged in the Complaint and supported by the evidence offered at hearing, is an “exhibitor” as the term is defined in the AWA and Regulations.¹⁰ In particular, Complainant alleges, and provides evidence, that Respondent violated the AWA on the following occasions:

1. On or about November 26, 2021, at Bradford Auto Body in Littleton, Colorado, Respondent operated as an exhibitor, as that term is defined in the Act and the Regulations, exhibiting reindeer, without holding a valid license, in violation of section 2134 of the Act (7 U.S.C. § 2134) and section 2.1(a)(1) of the Regulations (9 C.F.R. § 2.1(a)(1)).¹¹

¹⁰ Complainant’s Initial Brief at 3 (citing 7 U.S.C. § 2134) (prohibiting the exhibition of regulated animals by persons without an AWA license)).

¹¹ CX-3 (Facebook post by Brad Wann of two reindeer on display on the date and at the location alleged, which tags “with” Respondent); CX-31 at 5-6 (Respondent’s Affidavit, stating: “I confirm that my reindeers . . . were used during the below events either by myself or other individuals who represent the LVR [Laughing Valley Ranch].” *See also* Tr. 31, 69-70.

2. On or about December 4, 2021, at the annual Local Works – Wheat Ridge Cyclery in Wheat Ridge, Colorado, Respondent operated as an exhibitor, as that term is defined in the Act and the Regulations, exhibiting reindeer, without holding a valid license, in violation of section 2134 of the Act (7 U.S.C. § 2134) and section 2.1(a)(1) of the Regulations (9 C.F.R. § 2.1(a)(1)).¹²
3. On or about December 7, 2021, at the City of Aurora Town Hall in Aurora, Colorado, Respondent operated as an exhibitor, as that term is defined in the Act and the Regulations, exhibiting reindeer, without holding a valid license, in violation of section 2134 of the Act (7 U.S.C. § 2134) and section 2.1(a)(1) of the Regulations (9 C.F.R. § 2.1(a)(1)).¹³
4. On or about December 10, 2021, at Glenwood Market in Glenwood Springs, Colorado, Respondent operated as an exhibitor, as that term is defined in the Act and the Regulations, exhibiting reindeer, without holding a valid license, in violation of section 2134 of the Act (7 U.S.C. § 2134) and section 2.1(a)(1) of the Regulations (9 C.F.R. § 2.1(a)(1)).¹⁴

¹² CX-4 (Facebook post by Localworks about a holiday event on the date and at the location alleged); CX-5 (enlargement of the photo in the CX-4 Facebook post, showing a person petting a reindeer); CX-31 at 5-6 (Respondent’s Affidavit, stating: “I confirm that my reindeers . . . were used during the below events either by myself or other individuals who represent the LVR.”). *See also* Tr. 31, 71-73.

¹³ CX-7 (Facebook post by Brad Wann showing a person standing by a reindeer on the date and at the location alleged and tagging “with” Respondent); CX-31 at 5-6 (Respondent’s Affidavit, stating: “I confirm that my reindeers . . . were used during the below events either by myself or other individuals who represent the LVR.”). *See also* Tr. 31, 73-75.

¹⁴ CX-10 (Facebook post by Amber Wann showing a Brad Wann dressed as Father Christmas standing by a reindeer on the date and at the location alleged); CX-9, CX-11 (Facebook posts from two different accounts of the same photograph in CX-10); CX-31 at 5-6 (Respondent’s Affidavit, stating: “I confirm that my reindeers . . . were used during the below events either by myself or other individuals who represent the LVR.”). *See also* Tr. 31, 76-78.

5. On or about December 11, 2021, at Barnett and Son Brewing Co. in Parker, Colorado, Respondent operated as an exhibitor, as that term is defined in the Act and the Regulations, exhibiting reindeer, without holding a valid license, in violation of section 2134 of the Act (7 U.S.C. § 2134) and section 2.1(a)(1) of the Regulations (9 C.F.R. § 2.1(a)(1)).¹⁵
6. On or about December 17, 2021, at The Hythe in Vail, Colorado, Respondent operated as an exhibitor, as that term is defined in the Act and the Regulations, exhibiting reindeer, without holding a valid license, in violation of section 2134 of the Act (7 U.S.C. § 2134) and section 2.1(a)(1) of the Regulations (9 C.F.R. § 2.1(a)(1)).¹⁶
7. On or about December 18, 2021, at the W Club in Windsor, Colorado, Respondent operated as an exhibitor, as that term is defined in the Act and the Regulations, exhibiting reindeer, without holding a valid license, in violation of section 2134 of the Act (7 U.S.C. § 2134) and section 2.1(a)(1) of the Regulations (9 C.F.R. § 2.1(a)(1)).¹⁷
8. On or about December 18, 2021, at the Moffat Road Railroad Museum in Granby,

¹⁵ CX-12 (Facebook post by Brad Wann showing a photo of a man standing by a reindeer on the date and at the location alleged, and tagging “with” Respondent); CX-6 (Facebook post by Amber Wann showing a list of events for Respondent’s reindeer); CX-31 at 5-6 (Respondent’s Affidavit, stating: “I confirm that my reindeers . . . were used during the below events either by myself or other individuals who represent the LVR.”). *See also* Tr. 31, 79-80.

¹⁶ CX-13 (Facebook post by Amber Wann showing a photo of reindeer and a woman with a reindeer next to a swimming pool on the date alleged, and stating in the caption that she was helping Respondent take “cupid” to the location alleged); CX-31 at 5-6 (Respondent’s Affidavit, stating: “I confirm that my reindeers . . . were used during the below events either by myself or other individuals who represent the LVR.”). *See also* Tr. 31, 81-82

¹⁷ CX-14 (Facebook post showing a photo of two reindeer on the date and at the location alleged, and tagging “with” Respondent); CX-6 (Facebook post by Amber Wann showing a list of events for Respondent’s reindeer, including this alleged event); CX-16 (Facebook Live video with a narrator stating that “Santa’s reindeer” were there to meet the boys and girls); CX-31 at 5-6 (Respondent’s Affidavit, stating: “I confirm that my reindeers . . . were used during the below events either by myself or other individuals who represent the LVR.”). *See also* Tr. 31, 83-86.

Colorado, through associates, Respondent operated as an exhibitor, as that term is defined in the Act and the Regulations, exhibiting reindeer, without holding a valid license, in violation of section 2134 of the Act (7 U.S.C. § 2134) and section 2.1(a)(1) of the Regulations (9 C.F.R. § 2.1(a)(1)).¹⁸

9. On or about December 23, 2021, at Eastern Hills Community Church in Aurora, Colorado, through associates, Respondent operated as an exhibitor, as that term is defined in the Act and the Regulations, exhibiting reindeer, without holding a valid license, in violation of section 2134 of the Act (7 U.S.C. § 2134) and section 2.1(a)(1) of the Regulations (9 C.F.R. § 2.1(a)(1)).¹⁹

10. On or about December 24, 2021, at Red Rocks Park Meadows Church in Lone Tree,

¹⁸ CX-17 (Facebook post by Moffat Road Railroad Museum, dated December 17, 2021, showing photos of a man dressed as Santa Claus and a reindeer and stating in the caption that “Santa is coming! He’s bringing a few of his reindeer too!”) (the caption also includes the event dates and location as alleged); CX-18 (Facebook post by Moffat Road Railroad Museum, dated December 18, 2021, showing photos of a reindeer in a pen, one photo including a man dressed as Father Christmas in the pen also, and stating in the caption that “All the way from the North Pole, we have one of Santa’s reindeer, 4 year old Dancer, visiting the Moffat Museum!”); CX-19 (Facebook post by Amber Wann, dated December 18, 2021, tagging “with” Respondent and “at” Moffat Road Railroad Museum, with several photos including some of the location, a reindeer in the pen, and a man dressed as Father Christmas in the pen with a reindeer, and the caption stating “Up & at it early today for more Laughing Valley Ranch Reindeer Adventures during Colorado Christmas Season 2021!!!”); CX-31 at 5-6 (Respondent’s Affidavit, stating: “I confirm that my reindeers . . . were used during the below events either by myself or other individuals who represent the LVR.”). *See also* Tr. 31-32, 86-88.

¹⁹ CX-20 (Facebook post by Brad Wann, dated December 23, 2021, tagging “with” Respondent and “at” Eastern Hills Community Church,” with a caption stating: “Cupid found her reflection!” and a video); CX-21 (the Facebook-post video from CX-20 of a reindeer, “cupid”, looking at her reflection in a window while a little girl looks on from the other side of the window); CX-22 (Facebook post by Eastern Hills Community Church dated December 23, 2021, with a caption stating: “Join us as we celebrate Christmas! THURSDAY, DECEMBER 23 . . . with Live Reindeer and S’mores,” and a video); CX-23 (the video from CX-22 with the narrator saying “We are so excited! We’ve got reindeer comin’, Santas here . . .we’re here tomorrow . . . the reindeer won’t be here tomorrow”); CX-6 (listing this event in the schedule of reindeer appearances); CX-31 at 5-6 (Respondent’s Affidavit, stating: “I confirm that my reindeers . . . were used during the below events either by myself or other individuals who represent the LVR.” *See also* Tr. 32, 89-91.

Colorado, through associates, Respondent operated as an exhibitor, as that term is defined in the Act and the Regulations, exhibiting reindeer, without holding a valid license, in violation of section 2134 of the Act (7 U.S.C. § 2134) and section 2.1(a)(1) of the Regulations (9 C.F.R. § 2.1(a)(1)).²⁰

11. On or about December 26, 2021, in Idaho Springs, Colorado, Respondent operated as an exhibitor, as that term is defined in the Act and the Regulations, exhibiting reindeer, without holding a valid license, in violation of section 2134 of the Act (7 U.S.C. § 2134) and section 2.1(a)(1) of the Regulations (9 C.F.R. § 2.1(a)(1)).²¹

12. On or about February 6, 2022, at the Winterfest at Cherry Hills Community Church in Highlands Ranch, Colorado, Respondent, through associates, operated as an exhibitor, as that term is defined in the Act and the Regulations, exhibiting reindeer, without holding a valid license, in violation of section 2134 of the Act (7 U.S.C. § 2134) and section 2.1(a)(1) of the Regulations (9 C.F.R. § 2.1(a)(1)).²²

²⁰ CX-25 (two Facebook photo posts, dated December 25, 2021, tagging “at” Red Rocks Church - Lone Tree Campus with photos of a man dressed as Santa Clause leading a reindeer and another of a reindeer in a pen with a little girl walking by to see it); CX-6 (listing this event in the schedule of reindeer appearances taking place on December 24, 2021); CX-31 at 5-6 (Respondent’s Affidavit, stating: “I confirm that my reindeers . . . were used during the below events either by myself or other individuals who represent the LVR.”). *See also* Tr. 32, 91-93

²¹ CX-26 (Facebook post by Amber Wann, dated December 26, 2021, stating “Keeping up with on last tradition [tag] William B. III Lee had each year was panhandling on Boxing Day!!! Though typically in Breckenridge for Bill (& he shared with his son on Christmas day where Brad should go), we opted to stay right in Bill’s hometown of Idaho Springs due to 70mph snow squalls expected deeper into the maintains . . . We met [tag] Bryan Olson to pick up Cupid and get her back to the rest of her herd,” with multiple photos of a man dressed as Father Christmas holding a reindeer in various locations, some with individuals tagged throughout the caption); CX-31 at 5-6 (Respondent’s Affidavit, stating: “I confirm that my reindeers . . . were used during the below events either by myself or other individuals who represent the LVR.”). *See also* Tr. 32, 93-95.

²² CX-27 (Facebook post by Brad Wann, dated February 6, 2022, tagging “with” Respondent and “at” Cherry Hills Community Church, stating “Winterfest at Cherry Hills Community Church. If you are in the area, stop by and say Hi! Departing time for Dancer is at 2:30pm . . . Amber and

13. On or about February 6, 2022, in Leadville, Colorado, Respondent operated as an exhibitor, as that term is defined in the Act and the Regulations, exhibiting reindeer, without holding a valid license, in violation of section 2134 of the Act (7 U.S.C. § 2134) and section 2.1(a)(1) of the Regulations (9 C.F.R. § 2.1(a)(1)).²³

I. Background of Respondent's Previous AWA License

On or about March 1997 Respondent was issued an AWA Class C license, No. 84-C-0088, which enabled him to exhibit animals covered by the AWA subject to the Act and Regulations.²⁴ On September 10, 2013, Respondent was subject to a matter initiated by an order to show cause why AWA License 84-C-0088 should not be terminated ("13-0343 Order to Show Cause") under AWA Docket No. 13-0343. The 13-0343 Order to Show Cause alleged that Respondent had been found to have violated State of Colorado law pertaining to the ownership, neglect, and welfare of animals in *People v. William Brackston Lee*, Case No. 12M91 (Colo. Combined Cts., Clear Creek Cty.), that Respondent had pled guilty to violation Colorado animal

Bill are heading to Leadville with Cupid, for a wedding...putting smiles on faces is what we do at Laughing Valley Ranch," with a photo of a man and a reindeer in a pen and a comment below with a picture of Respondent with a man and a woman); CX-31 at 5-6 (Respondent's Affidavit, stating: "I confirm that my reindeers . . . were used during the below events either by myself or other individuals who represent the LVR."). *See also* Tr. 32, 96-97.

²³ CX-28 (Facebook post by Laughing Valley Ranch, dated February 8, 2022, with the caption stating "BILL IS BACK & was reunited with his Cupid for a wedding in Leaville this past weekend!!! Welcome Back Bill!!!," with several photos of reindeer, a photo of the wedding couple with the reindeer, a photo of guests at the wedding with the reindeer standing nearby, a photo of Respondent and the reindeer, and a video); CX-29 (the video from CX-28 of Respondent walking the reindeer at the event through the snow); CX-30 (Facebook post by Amber Wann, dated February 8, stating in the caption "I was honored to help [tag] William B. Lee III experience this special day for a bride on Sunday, who had requested Cupid at her wedding prior to Bill getting sick," with the same photos and video as CX-28); CX-31 at 5-6 (Respondent's Affidavit stating "I confirm that my reindeers . . . were used during the below events either by myself or other individuals who represent the LVR."). *See also* Tr. 32, 96-97.

²⁴ Tr. 188:1-4.

cruelty laws on March 13, 2013, and that, therefore, the renewal of Respondent's license would be contrary to the purposes of the AWA and the license should be terminated.

Further, on December 6, 2013, another matter against Respondent was initiated by Complaint that alleged that Respondent (license number 84-C-0088) willfully violated the AWA and Regulations by failing to meet minimum standards.

On March 12, 2021, AWA Docket No. 13-0343 was dismissed by Order Dismissing Complaint with Prejudice,²⁵ which stated, at 1:

During a telephone conference with the parties on March 11, 2021, counsel for APHIS advised that Respondent Lee voluntarily terminated AWA license no. 84-C-0088 in December 2020; therefore, the instant proceeding is moot. Counsel for APHIS agreed that the case can be dismissed.²⁶

The termination of Respondent's license 84-C-0088 is further evidenced by CX-1, APHIS Letter to Respondent, dated April 9, 2021, stating:

Per your request, your license to conduct activities regulated under the Animal Welfare Act (AWA) has been terminated, effective the date shown above.

Please be advised that, after the termination becomes effective, you may not engaged in any activities covered by the AWA without first obtaining a new license. Should you desire to obtain a new license, please contact this office.²⁷

However, AWA Docket No. 14-0021 was resolved by Consent Decision and Order issued April 22, 2021, wherein the parties agreed to a cease-and-desist order, suspension of

²⁵ *Lee*, AWA Docket No. 13-0343 (U.S.D.A. Mar. 21, 2021) (Order Dismissing Complaint with Prejudice), *available at* https://www.usda.gov/sites/default/files/documents/210312_Dismissal_AWA_13-0343%20Brackston%20Lee.pdf (last accessed Jan. 8, 2026).

²⁶ *Id.* at 1.

²⁷ CX-1.

AWA license 84-C-0088 for a term of five years, and resolution of any and all other alleged or potential violation of the AWA by Respondent occurring up to and including April 23, 2021.²⁸

In his Affidavit, CX-31 at 2, Respondent states:

Another reason I relinquish [sic] my license was due to finding out that my law firm had not resolve [sic] past issues that resulted in my license being questioned [sic]. I thought I was going to lose my license anyways. I knew that if my license was revoked, I would not be allowed to have or show animals ever again. So I figured if I voluntarily relinquished my license, there would be a chance in the future to be able to show my reindeers [sic] to the public again.²⁹

Although it is unclear why the parties in AWA Docket No. 14-0021 agreed, effective on April 22, 2021, to a five-year suspension of AWA license 84-C-0088, which was effectively terminated as of April 9, 2022, the suspension of terminated license holds no weight in this case. A terminated AWA license cannot be suspended or revoked.³⁰

Therefore, I will consider that at all times of alleged violations Respondent did not hold a valid AWA license and was subject to a cease-and-desist order but will not consider Respondent subject to an AWA-license suspension or revocation. I will consider Respondent subject to disqualification from being licensed.³¹

II. Respondent's Defenses

Although Respondent admits to the showing, either by himself or by his associates in connection with his business, Laughing Valley Ranch, of his reindeer on the occasions alleged in

²⁸ See CX-2, *Lee*, AWA Docket No. 14-0021 (U.S.D.A. Apr. 22, 2021) (Consent Decision and Order), available at https://www.usda.gov/sites/default/files/documents/210422_CD_AWA_14-0021%20-%20William%20Brackston%20Lee.pdf (last accessed Jan. 8, 2026).

²⁹ CX-31 at 2. See also Tr. 116:25-117: 11.

³⁰ See *Zimmerman*, 57 Agric. Dec. 1038, 1070-71 (U.S.D.A. 1998) (“If a violator terminates his or her license prior to the issuance of an order, as occurred in this proceeding, the violator has no license that may be revoked (recalled or taken back) by the Secretary of Agriculture.”).

³¹ See *id.* at 1068 (citing *Everhart*, 56 Agric. Dec. 1400 (U.S.D.A. 1997) (permanently disqualifying the respondent from obtaining an AWA license where the respondent was not licensed when the violations occurred or on the date the disqualification order was issued)).

the Complaint, *see* CX-31, Respondent presents several defenses and, for lack of better categorization, mitigating factors, contending that he has not violated the AWA.

First, Respondent's main defense is that his reindeer, due particularly to the manner in which he exhibits them, are not subject to the AWA; therefore, Respondent does not require a license to exhibit them.³² Respondent references the AWA "Gray Book,"³³ *see* RX-02 at 8 and 11, which Respondent contends exempt his reindeer as "nonregulated species" because they are exhibited as "domesticated farm animal exhibits."³⁴ Respondent further supports his argument by contending that his reindeer were "displayed" as opposed to "exhibited" and that the "displays" were educational in nature.³⁵ Particularly, Respondent contends that at each "display" of his reindeer: 1) there were informational banners that "included a QR code so families could access further educational material[;]" 2) "props such as antler sheds" were included in displays to "explain the agricultural and cultural uses of reindeer[;]" 3) sleighs were brought to the events and "within sight of the public" or, if safety required,³⁶ were represented on banners and in photographs; and 4) "invoices sent to clients explicitly described the service as an 'educational experience.'"³⁷ Respondent explains that he relied on the suggestion of an APHIS inspector,³⁸ as

³² *See* Respondent's Answering Brief at 1 (stating "I chose to relinquish [my license] on advice of counsel, because relinquishment preserved my rights for the future. This decision was made after review of the Gray Book, which allows for educational displays of domestic farm animals without requiring a license.") (citing Tr. 117:23-118:2).

³³ The official title of the APHIS guidance is Licensing and Registration Under the Animal Welfare Act, Guidelines for Dealers, Exhibitors, Transporters, and Researchers. However, this guidance is referred to throughout the hearing and this decision as the "Gray Book."

³⁴ *See* Tr. 117:22-118:2.

³⁵ *See* Respondent's Answering Brief at 2-3, Sec. 3 (citing Tr. 206: 1-7. 8-12; 140:3-11; 129:14-16; 161:12-18; 140:5-7; 129:1-8; 144:10-19; 129:22-23).

³⁶ *See id.* at 3, Section 4 (citing Tr. 139:3-13, 161:12-18).

³⁷ *Id.* at 2-3, Section 3.

³⁸ Tr. 115: 5-10, 165:10-21, 169:25-170:10.

well as the interpretation of the 2018 Gray Book Revisions and the interpretation of such by his attorney, to conclude that his reindeer “displays” were subject to the exemption and that an AWA license was not needed to continuing “displaying” his reindeer.³⁹

Complainant counters this defense by contending that, as testified by the APHIS Veterinary Medical Officer (“VMO”), reindeer are wild animals and not exempt from the AWA as “domestic animals.”⁴⁰ Complainant contends, Complainant’s Initial Brief at 11, that

Reindeer meet the Regulations’ definition of “wild animal” because they “now or historically [have] been found in the wild, or in the wild state, within the boundaries of the United States, its territories, or possessions.” They likewise satisfy the Regulations’ definition of being “in the wild state” because they are “living in [their] original, natural condition [and are] not domesticated in the United States.”⁴¹

Complainant explained that, as testified by the APHIS Supervisory Veterinary Medical Officer (“SVMO”), APHIS released a regulatory update in 2018 “that explained what sorts of exhibits might qualify as an exhibit ‘intended to advance agricultural arts and sciences’ and that the gray book was updated to reflect this guidance.”⁴² Specifically, the SVMO explained that the update to the Gray Book granted an exemption from the AWA for

“[a]nyone who arranges and takes part in showing only domesticated farm-type animals at agricultural shows, fairs, and exhibits (e.g., petting zoos with cows, sheep, goats, rabbits, llamas and alpacas)” . . . He stated that it also grants an exemption for “exhibitions of art portraying traditional farming and agricultural settings (such as nativity scenes with a camel and domesticated farm-type animals displayed in a barn, and traditional agricultural displays of working animals, such as a reindeer pulling a sled or working on a farm)” . . . He specifically cited “exhibiting camels in a nativity scene in a barn-type setting, and . . . exhibiting reindeers in a display that demonstrated pulling of a sled or doing farm-type work in a farm-type setting” as examples of exhibits that advance agricultural arts and science. . . . Additionally, he stated that the gray book has an exemption for

³⁹ See Respondent’s Answering Brief at 3, Sec. 6.

⁴⁰ See Complainant’s Initial Brief at 10 (citing Tr. 54-55, 70-71, 225; 9 C.F.R. § 1.1 (defining the term “wild animal”)). See also Complainant’s Reply Brief at 4-6.

⁴¹ Complainant’s Initial Brief at 11.

⁴² *Id.* at 12 (citing Tr. 42-43).

“hobby exhibitors” who “maintain eight or fewer pet animals, ‘exotic companion mammals’, and/or domesticated farm-type animals for exhibition.”⁴³

However, Complainant contends that reindeer, and particularly Respondent’s reindeer exhibits as alleged, do not fall under these exemptions because: 1) they do not meet the definition of farm animals⁴⁴ 2) “Respondent’s exhibitions of reindeer did not contain or constitute ‘traditional agricultural displays of working animals, such as a reindeer pulling a sled or working on a farm,’”⁴⁵ as there is no evidence showing that a sleigh was present at “every” or any exhibit of the reindeer exhibitions alleged;⁴⁶ 3) Respondent’s reindeer exhibitions are not exempted under any kind of educational exhibit exemption because no such exemption is available under the AWA, Regulations, or Gray Book;⁴⁷ and 4) the “hobby exhibitors” exemption is not applicable because Respondent’s reindeer are not “pet animals, small exotic and small wild animals, [or] farm animals.”⁴⁸ Respondent does not dispute that the “hobby exhibitors” exemption does not apply here.⁴⁹

Complainant contends that reindeer are wild animals that cannot fall within the exception of “domesticated farm animals” but concedes through Complainant’s witness, the SVMO who testified (as previously mentioned), that in June of 2018

there was a regulatory update that Animal Care released . . . Animal Care

⁴³ Complainant’s Initial Brief at 12-13 (citing Tr. 42-44; RX-2 at 11; 9 C.F.R. § 2.1(a)(3)(vii)).

⁴⁴ Complainant’s Initial Brief at 13 (citing Tr. 225; 9 C.F.R. § 1.1 (defining “farm animal”)). *See also* Complainant’s Reply Brief at 8-11 (stating at 9 that Complainant’s witnesses “testified at the hearing that reindeer are considered to be wild hoofstock that are regulated under the AWA and that exhibiting them constitutes regulated activity under the Act that requires a license. Tr. at 42-44, 54-55, 70-71, 225.”).

⁴⁵ Complainant’s Initial Brief (citing Tr. 45-46).

⁴⁶ *Id.* at 14 (citing Tr. 59-60, 129, 132, 142, 159, 161; CX-31; CX-3, 4, 10, 12-14, 17, 20, 25-27, 30). *See also* Complainant’s Reply Brief at 4-7.

Id. at 14 (citing Tr. 59-60, 129, 132, 142, 159, 161; CX-31; CX-3, 4, 10, 12-14, 17, 20, 25-27, 30). *See also* Complainant’s Reply Brief at 4-7.

basically described what qualified as an exclusion for an exhibit that advanced agricultural arts and sciences, which is an exclusion provided for in Part 1 of the Animal Welfare Act regulations in the definition of exhibitor, and under that, the way the Animal Care at that time interpreted that definition for the exclusion . . .

. . . .

. . . one [example] was exhibiting camels in a nativity scene in a barn-type setting, and the other one was exhibiting reindeers in a display that demonstrated pulling of a sled or doing farm-type work in a traditional farm-type setting.⁵⁰

Therefore, based on the Regulations' definition of "exhibitor," 9 C.F.R. § 1.1, as well as the guidance provided in the Gray Book, RX-2 at 11, generally, exotic or non-traditional domesticated farm animals, such as camels or reindeer, are not exempt unless the exhibition is actively "portraying traditional farming and agricultural settings."⁵¹

Although Respondent intended to continue exhibiting his reindeer without a valid license under this narrow exception, as indicated by the efforts he and his associates took to occasionally bring a sled to exhibits or to provide educational materials about reindeer used for domesticated farm-type work, I find that the manner in which Respondent actually exhibited his reindeer falls short of this narrow exemption. The evidence Complainant proffered of each of the 13 alleged exhibits shows Respondent's reindeer being exhibited, often advertised as Santa's reindeer, and for the purpose of promoting events or photo/petting opportunities. Respondent provided no

⁵⁰ Tr. 42:8-43:8. *See also* 9 C.F.R. § 1.1 (stating "*Exhibitor* means . . . This term excludes retail pet stores, horse, dog, and pigeon races, an owner of a common, domesticated household pet who derives less than a substantial portion of income from a nonprimary source (as determined by the Secretary) for exhibiting an animal that exclusively resides at the residence of the pet owner, organizations sponsoring and all persons participating in State and country fairs, livestock shows, rodeos, field trials, coursing events, falconry, purebred dog and cat shows, bird fancier shows, *and any other fairs or exhibitions intended to advance agricultural arts and sciences, as may be determined by the Secretary.*") (emphasis added); RX-2 at 11 (Gray Book, stating: "Also exempt are exhibitions of art portraying traditional farming and agricultural settings (such as nativity scenes with a camel and domesticated farm-type animals displayed in a barn, and traditional agricultural displays of working animals, such as reindeer pulling a sled or working on a farm). However, anyone exhibiting other regulated animals along with domesticated farm-type animals for nonagricultural purposes (*e.g.*, camel rides at carnivals) must be licensed.").

⁵¹ Tr. 15:17-18.

further evidence to support his contention that any of the 13 alleged occasions were “portraying traditional farming and agricultural settings” other than claiming that the exhibitor was present to provide oral information and the enclosures and tools the exhibitors brought to the “gigs” served to show an “agricultural setting.”⁵² Whether Respondent’s reindeer were “exhibited” or “displayed” is of no consequence under either AWA statutory or regulatory language. Additionally, Respondent’s examples of how the “displays” were educational in nature is not enough to show that the exhibits were “portraying traditional farming and agricultural settings” as required by the narrow exemption.

Second, Respondent claims that he relied on counsel and the Gray Book in determining that he could continue to exhibit his reindeer, by himself or through his associates, without an AWA license due to his the perceived exemption of his reindeer.⁵³ Respondent contends that during an AWA inspection in 2018, he was informed of changes made to AWA policy as outlined in the Gray Book, that might exempt him from needing an AWA license to exhibit his reindeer.⁵⁴ However, the Gray Book itself states:

This document lists the major types of regulated and exempt businesses, *but it does not cover all cases. If in doubt about your status, use the Licensing and Registration Assistant on the Animal Care website* (efile.aphis.usda.gov/LRAssistant/s/), *or call or write the USDA, Animal and Plant Health Inspection Service (APHIS), Animal Care (AC) office* (see page 15). AC personnel will address your questions and help you obtain a copy of the Code of Federal Regulations, Title 9, Chapter 1, Subchapter A, which gives the legal requirements for businesses regulated by the Animal Welfare Act.⁵⁵

⁵² Tr. 138:15-142:17.

⁵³ Respondent’s Answering Brief at 3-4, Sec. 6.

⁵⁴ See Tr. 115:5-10; 182: 6-17. See also CX-31 at 1-2, 3.

⁵⁵ Gray Book at 1 (emphasis added), *available at* <https://www.aphis.usda.gov/sites/default/files/graybook.pdf> (last accessed Jan. 14, 2026). The Introduction of the Gray Book was not excerpted in RX-2.

Similarly, Respondent's reliance on counsel,⁵⁶ as well as the reliance of his associates on said counsel,⁵⁷ was at Respondent's own peril. Although Respondent did not present any evidence of the attorney's counsel or reasoning on which he relied, anyone participating in regulated activity is "bound by federal statutes and regulations, irrespective of the advice, findings, or compliance determinations" of any other individual.⁵⁸

Third, Respondent contends that this matter resulted from him being the target of an animal advocacy group.⁵⁹ Respondent claims that PETA (the People for Ethical Treatment of Animals) somehow discovered he was relinquishing his AWA license before the information was public, suggesting PETA found out through APHIS, posted such information in an unidentified location, and monitored Respondent for an opportunity to lodge a complaint with APHIS.⁶⁰ Complainant does not dispute that the present matter stemmed from a complaint that PETA filed with APHIS.⁶¹ However, Respondent has proffered no evidence of discrimination or prejudice as a result of PETA's complaint to APHIS or otherwise shown the relevance of his contentions to this matter.

Fourth, Respondent states that when the majority of these alleged occasions took place he was "hospitalized with COVID-19 and placed in a medically induced coma" and therefore "could not have personally conducted, directed, or overseen the exhibits this time."⁶² Although

⁵⁶ Tr. 116:25-117:11. Respondent was not represented by counsel in this proceeding.

⁵⁷ Respondent's Answering Brief at 3-4, Sec. 6.

⁵⁸ *Zimmerman*, 57 Agric. Dec. at 1058.

⁵⁹ See Respondent's Answering Brief at 3, Sec. 5 (arguing that APHIS inspectors were not physically present during any of the alleged events but that Complainant relies on Facebook posts as evidence); 4, Sec. 8 (citing Tr. 126:9-15, 127:21-23) (stating "The case rests entirely on secondhand accounts, which cannot convey the full educational context of the events.").

⁶⁰ Tr. 119:8-120:22, 122:20-24

⁶¹ Tr. 122:13-14.

⁶² Respondent's Answering Brief at 2, Sec. 2 (citing Tr. 127:23-25).

Respondent contends that his “friends and volunteers” acted “on their own,” Respondent has also admitted, and the evidence supports, that those who exhibited his animals on each of the alleged occasions was an associate of his and exhibiting the reindeer on his and his business, Laughing Valley Ranch, behalf.⁶³ Respondent’s attendance at the final alleged event, exhibiting a reindeer for a wedding, further supports that Respondent did not object to the scheduling and exhibition of his reindeer on his behalf while he was incapacitated.

The Cease-and-Desist Order to which Respondent is subject states: “Respondent, his agents and employees, successors and assigns, directly or through any corporate or other device, shall cease and desist from violating the Act and Regulations and Standards.”⁶⁴ It is clear that Respondent’s “business associates” exhibited Respondent’s reindeer as his agents. It is unfortunate that, as his agents, Respondent’s associates chose to proceed with exhibition of his reindeer based on their own interpretation, and the alleged interpretation of an attorney, of the AWA and Regulations without seeking guidance from APHIS. However, as previously mentioned, incorrect interpretations of guidance by an outside attorney does not change the fact that Respondent, and his agents acting on his behalf, are subject to the AWA and Regulations for covered activities.

Lastly, Respondent contends that prosecution witnesses lacked first-hand knowledge and

⁶³ CX-31 at 5-6 (stating “I confirm that my reindeers . . . were used during the below events either by myself or other individuals who represent the LVR.”), 9 (stating, in answer to a question “What is your relationship to Brad and Amber WANN?” “A: Very close friends and consider them business associates. They aren’t employees of mine, but handle contracted labor for me at events.”); CX-26 (Facebook post by Amber Wann stating “Brad helped me make an additional \$553 in 2hrs taking photos with Cupid just like Bill did it”); 128:21-129:8 (discussing Amber Wann’s involvement with Laughing Valley Ranch’s billing and invoices); Tr. 151:20-23 (Mr. Wann stating “You [Respondent] have compensated me to fuel and such and my time and only in the recent - - in the past years.”).

⁶⁴ CX-2 at 3.

“relied heavily on social-media photographs” and that there was no harm to animal welfare.⁶⁵ I agree with Respondent that it would have been helpful to have a full first-hand account of the exhibits. However, the Complaint alleges exhibition of covered animals without a valid license while Respondent was subject to a cease-and-desist order. Therefore, the lack of “first-hand knowledge” on the part of Complainant’s witnesses and whether there was no harm to animal welfare is irrelevant.

Based on the above discussion, the evidence presented and the record before me, I find that Respondent, on his own or by and through his agents, exhibited reindeer, a regulated species under the AWA and not subject to exemption under the circumstances in which they were exhibited, on 13 occasions as alleged, without a valid AWA license and while Respondent was subject to a cease and desist order.

III. Penalties

Under the AWA, the appropriateness of the civil penalty, including a cease-and-desist order, shall be determined “with respect to the size of the business of the person involved, the gravity of the violation, the person’s good faith, and the history of previous violations.”⁶⁶

Complainant’s Agency Representative testified as APHIS’s sanction witness.⁶⁷ The Agency Representative stated that the “Agency is recommending license revocation and a cease - and-desist order” in accordance with 7 U.S.C. § 2149 (a)-(b).⁶⁸ Complainant did not recommend or request a civil monetary penalty.⁶⁹

⁶⁵ Respondent’s Answering Brief at 3, Sec. 5; 4, Sec. 7.

⁶⁶ 7 U.S.C. §§ 2149(b), 2132(h), (c); 9 C.F.R. § 1.1.

⁶⁷ Tr. 220:5-224:19.

⁶⁸ Tr. 222:12-223:16.

⁶⁹ 7 U.S.C. § 2149 states that “Any person who knowingly fails to obey a cease-and-desist order made by the Secretary under this section shall be subject to a civil penalty of \$1,500 for each offense, and each day during which such failure continues shall be deemed a separate offense.”

Respondent has stated that his business, Laughing Valley Ranch, is not a “full-time operation”⁷⁰ and that, aside from the reindeers in question, the animals he owns consist of burros, sheep, goats, llamas, alpacas, and a cow.⁷¹ Therefore, I find that Respondent’s business is small in size. Respondent admits to having been in operation for many years⁷² and, as noted previously, has previously held an AWA exhibitors license. I find that the gravity of these violations, exhibiting without a valid license, is great as exhibiting without a license “strikes at the heart of the regulatory program.”⁷³ However, I do not find Respondent to have fully lacked good faith in his violations. First, although it seems that Respondent, and his agents, chose to continue operating his reindeer exhibition operations without a license and has clearly stated that he does not wish to be subject to an AWA license,⁷⁴ Respondent’s belief that his operations were exempt under the Gray Book, although misinformed, were genuine. Lastly, as previously mentioned Respondent has a history of previous violations. Based on these factors, a cease-and-desist order is fully appropriate.

Also, as previously discussed, *supra* Section I (“Background of Respondent’s Previous AWA License”), a terminated AWA license cannot be revoked.⁷⁵ However,

While there is no provision in the Animal Welfare Act that explicitly states that the Secretary of Agriculture is authorized to disqualify a person from becoming licensed, section 21 of the Animal Welfare Act (7 U.S.C. § 2151) authorizes the

However, not only did Complainant not recommend a civil monetary penalty for Respondents violation of the cease-and-desist order but also offered no evidence as to whether Respondent “knowingly” failed to obey the cease-and-desist order. Therefore, I find that it is not necessary to automatically impose this penalty here.

⁷⁰ Tr. 116:1.

⁷¹ CX-31 at 2.

⁷² CX-31 at 1.

⁷³ *Berosini*, 54 Agric. Dec. 886, 907 (U.S.D.A. 1995) (citing *Bradshaw*, 50 Agric. Dec. 499, 509 (U.S.D.A. 1991); *Ennes*, 45 Agric. Dec. 540, 546 (U.S.D.A. 1986)).

⁷⁴ Tr. 174:25-175:1, 175:11-19.

⁷⁵ See *supra* notes 30, 31.

issuance of an order disqualifying an unlicensed violator from becoming licensed because of violations of the Animal Welfare Act, the Regulations, or the Standards, and there are numerous instances in which the Secretary of Agriculture has exercised the authority to disqualify unlicensed violators from becoming licensed under the Animal Welfare Act.⁷⁶

....

The appropriate sanction to be imposed against a person whose license would be revoked for violations of the Animal Welfare Act, the Regulations, or the Standards, but for the violator's being unlicensed, is disqualification from becoming licensed.⁷⁷

Thus, I find that an appropriate sanction for Respondent in this instance is an order of disqualification from becoming licensed.⁷⁸

Findings of Fact

1. Respondent William Braxton Lee III is an individual who resides in Colorado. Respondent's mailing addresses will not be provided in this Order to protect his privacy, but will be provided to the Hearing Clerk's Office, United States Department of Agriculture, for the purpose of serving this Order and all future documents.

⁷⁶ *Zimmerman*, 57 Agric. Dec. at 1067-68 (citing *Vergis*, 55 Agric. Dec. 148, 165 n.3 (U.S.D.A. 1996); *Petersen*, 53 Agric. Dec. 80, 86 (U.S.D.A. 1994); *Bradshaw*, 50 Agric. Dec. 499, 507 (1991); *Lawson*, 57 Agric. Dec. 980 (U.S.D.A. 1998) (disqualifying respondents from obtaining an Animal Welfare Act license for two years where respondents had previously voluntarily terminated their license and were not licensed on the date the disqualification order was issued); *Shepherd*, 57 Agric. Dec. 242 (U.S.D.A. 1998) (providing for a seven-day suspension of the respondent's Animal Welfare Act license, but stating that if the respondent is not licensed when the order is issued, the respondent is disqualified from becoming licensed under the Animal Welfare Act for seven days); *Everhart*, 56 Agric. Dec. 1400 (1997) (permanently disqualifying the respondent from obtaining an Animal Welfare Act license where the respondent was not licensed when the violations occurred or on the date the disqualification order was issued); *Vergis*, 55 Agric. Dec. 148 (1996) (disqualifying the respondent from obtaining an Animal Welfare Act license for one year where the respondent was not licensed when the violations occurred or on the date the disqualification order was issued); *Petersen*, 53 Agric. Dec. 80 (1994) (prohibiting the respondents from obtaining an Animal Welfare Act license for one year where the respondents were not licensed when the violations occurred or on the date the disqualification order was issued).

⁷⁷ *Zimmerman*, 57 Agric. Dec. at 1071.

⁷⁸ See 9 C.F.R. §§ 2.5(b), 2.1(d).

2. At all times material herein, Respondent did business as Laughing Valley Ranch.
3. At all times material herein, Respondent's Animal Welfare Act license (AWA Class C "Exhibitor" license No. 84-C-0088) was terminated and Respondent was operating without a valid AWA license.
4. At all times material herein, Respondent was subject to an order directing him, his agents and employees, successors and assigns, directly or through any corporate or other device, to cease and desist from violating the Animal Welfare Act (the Act), the Regulations, and the Standards.
5. On or about November 26, 2021, at Bradford Auto Body in Littleton, Colorado, Respondent, acting in his own capacity or by and through his associates, operated as an exhibitor, as that term is defined in the Act and the Regulations, by exhibiting reindeer without holding a valid license, in violation of section 2134 of the Act (7U.S.C. § 2134) and section 2.1(a)(1) of the Regulations (9 C.F.R. § 2.1(a)(1)). In so doing, Respondent also failed to obey a cease-and-desist order made by the Secretary pursuant to section 2149(b) of the Act (7 U.S.C. § 2149(b)).
6. On or about December 4, 2021, at the annual Local Works – Wheat Ridge Cyclery in Wheat Ridge, Colorado, Respondent, acting in his own capacity or by and through his associates operated as an exhibitor, as that term is defined in the Act and the Regulations, by exhibiting reindeer without holding a valid license, in violation of section 2134 of the Act (7 U.S.C. § 2134) and section 2.1(a)(1) of the Regulations (9 C.F.R. § 2.1(a)(1)). In so doing, Respondent also failed to obey a cease-and-desist order made by the Secretary pursuant to section 2149(b) of the Act (7 U.S.C. § 2149(b)).
7. On or about December 7, 2021, at the City of Aurora Town Hall in Aurora, Colorado, Respondent, acting in his own capacity or by and through his associates, operated as an

exhibitor, as that term is defined in the Act and the Regulations, by exhibiting reindeer without holding a valid license, in violation of section 2134 of the Act (7 U.S.C. § 2134) and section 2.1(a)(1) of the Regulations (9 C.F.R. § 2.1(a)(1)). In so doing, Respondent also failed to obey a cease-and-desist order made by the Secretary pursuant to section 2149(b) of the Act (7 U.S.C. § 2149(b)).

8. On or about December 10, 2021, at Glenwood Market in Glenwood Springs, Colorado, Respondent, acting in his own capacity or by and through his associates operated as an exhibitor, as that term is defined in the Act and the Regulations, by exhibiting reindeer without holding a valid license, in violation of section 2134 of the Act (7 U.S.C. § 2134) and section 2.1(a)(1) of the Regulations (9 C.F.R. § 2.1(a)(1)). In so doing, Respondent also failed to obey a cease-and-desist order made by the Secretary pursuant to section 2149(b) of the Act (7 U.S.C. § 2149(b)).
9. On or about December 11, 2021, at Barnett and Son Brewing Co. in Parker, Colorado, Respondent, acting in his own capacity or by and through his associates, operated as an exhibitor, as that term is defined in the Act and the Regulations by exhibiting reindeer, without holding a valid license, in violation of section 2134 of the Act (7 U.S.C. § 2134) and section 2.1(a)(1) of the Regulations (9 C.F.R. § 2.1(a)(1)). In so doing, Respondent also failed to obey a cease-and-desist order made by the Secretary pursuant to section 2149(b) of the Act (7 U.S.C. § 2149(b)).
10. On or about December 17, 2021, at The Hythe in Vail, Colorado, Respondent, acting in his own capacity or by and through his associates, operated as an exhibitor, as that term is defined in the Act and the Regulations, by exhibiting reindeer without holding a valid license, in violation of section 2134 of the Act (7 U.S.C. § 2134) and section 2.1(a)(1) of the Regulations (9 C.F.R. § 2.1(a)(1)). In so doing, Respondent also failed to obey a cease-and-

desist order made by the Secretary pursuant to section 2149(b) of the Act (7 U.S.C. § 2149(b)).

11. On or about December 18, 2021, at the W Club in Windsor, Colorado, Respondent, acting in his own capacity or by and through his associates, operated as an exhibitor, as that term is defined in the Act and the Regulations, by exhibiting reindeer without holding a valid license, in violation of section 2134 of the Act (7 U.S.C. § 2134) and section 2.1(a)(1) of the Regulations (9 C.F.R. § 2.1(a)(1)). In so doing, Respondent also failed to obey a cease-and-desist order made by the Secretary pursuant to section 2149(b) of the Act (7 U.S.C. § 2149(b)).

12. On or about December 18, 2021, at the Moffat Road Railroad Museum in Granby, Colorado, Respondent, acting in his own capacity or by and through his associates, operated as an exhibitor, as that term is defined in the Act and the Regulations, by exhibiting reindeer without holding a valid license, in violation of section 2134 of the Act (7 U.S.C. § 2134) and section 2.1(a)(1) of the Regulations (9 C.F.R. § 2.1(a)(1)). In so doing, Respondent also failed to obey a cease-and-desist order made by the Secretary pursuant to section 2149(b) of the Act (7 U.S.C. § 2149(b)).

13. On or about December 23, 2021, at Eastern Hills Community Church in Aurora, Colorado, Respondent, acting in his own capacity or by and through his associates, operated as an exhibitor, as that term is defined in the Act and the Regulations, by exhibiting reindeer without holding a valid license, in violation of section 2134 of the Act (7 U.S.C. § 2134) and section 2.1(a)(1) of the Regulations (9 C.F.R. § 2.1(a)(1)). In so doing, Respondent also failed to obey a cease-and-desist order made by the Secretary pursuant to section 2149(b) of the Act (7 U.S.C. § 2149(b)).

14. On or about December 24, 2021, at Red Rocks Park Meadows Church in Lone Tree,

Colorado, Respondent, acting in his own capacity or by and through his associates, operated as an exhibitor, as that term is defined in the Act and the Regulations, by exhibiting reindeer without holding a valid license, in violation of section 2134 of the Act (7 U.S.C. § 2134) and section 2.1(a)(1) of the Regulations (9 C.F.R. § 2.1(a)(1)). In so doing, Respondent also failed to obey a cease-and-desist order made by the Secretary pursuant to section 2149(b) of the Act (7 U.S.C. § 2149(b)).

15. On or about December 26, 2021, in Idaho Springs, Colorado, Respondent, acting in his own capacity or by and through his associates, operated as an exhibitor, as that term is defined in the Act and the Regulations, by exhibiting reindeer, without holding a valid license, in violation of section 2134 of the Act (7 U.S.C. § 2134) and section 2.1(a)(1) of the Regulations (9 C.F.R. § 2.1(a)(1)). In so doing, Respondent also failed to obey a cease-and-desist order made by the Secretary pursuant to section 2149(b) of the Act (7 U.S.C. § 2149(b)).

16. On or about February 6, 2022, at the Winterfest at Cherry Hills Community Church in Highlands Ranch, Colorado, Respondent, acting in his own capacity or by and through his associates, operated as an exhibitor, as that term is defined in the Act and the Regulations, by exhibiting reindeer without holding a valid license, in violation of section 2134 of the Act (7 U.S.C. § 2134) and section 2.1(a)(1) of the Regulations (9 C.F.R. § 2.1(a)(1)). In so doing, Respondent also failed to obey a cease-and-desist order made by the Secretary pursuant to section 2149(b) of the Act (7 U.S.C. § 2149(b)).

17. On or about February 6, 2022, in Leadville, Colorado, the Respondent, acting in his own capacity or by and through his associates, operated as an exhibitor, as that term is defined in the Act and the Regulations, by exhibiting reindeer without holding a valid license, in violation of section 2134 of the Act (7 U.S.C. § 2134) and section 2.1(a)(1) of the

Regulations (9 C.F.R. § 2.1(a)(1)). In so doing, Respondent also failed to obey a cease-and-desist order made by the Secretary pursuant to section 2149(b) of the Act (7 U.S.C. § 2149(b)).

Conclusions of Law

1. The Secretary has jurisdiction over this matter.
2. As described in the Statement of Facts above, Respondent, himself or by and through his agents, has violated sections 2134 and 2149(b) of the Act (7 U.S.C. §§ 2134, 2149(b)) and section 2.1(a)(1) of the Regulations (9 C.F.R. § 2.1(a)(1)).
3. A terminated AWA license cannot be revoked.
4. An order disqualifying a person whose license would be revoked for violations of the AWA, the Regulations, or the Standards, but for the violator's being unlicensed, is appropriate pursuant to 7 U.S.C. § 2151, 9 C.F.R. §§ 2.5(b), 2.1(d).

ORDER

By reasons of the Findings of Fact above, Respondent William Brackston Lee III has violated the AWA and, therefore, the following Order is issued:

1. Respondent, his agents and employees, successors and assigns, directly or indirectly through any corporate or other device, shall cease and desist from violating the Animal Welfare Act and the Regulations issued under the Animal Welfare Act, and in particular, shall cease and desist from engaging in any activity for which a license is required under the Animal Welfare Act and the Regulations issued under the Animal Welfare Act, without being licensed, as required. The cease-and-desist provisions of this Order shall become effective on the day after service of this Order on Respondent.
2. Respondent is permanently disqualified from obtaining an AWA Exhibitor's license.

This Decision and Order shall be final and effective thirty-five (35) days after service of this Decision and Order upon the Respondent, unless there is an appeal to the Judicial Officer under section 1.145 of the Rules of Practice (7 C.F.R. § 1.145) applicable to this proceeding.

Copies of this Decision and Order shall be served by the Hearing Clerk upon all parties.

Issued this 28th day of January 2026, in Washington, D.C.

Tierney Carlos

Tierney Carlos

Administrative Law Judge

Hearing Clerk's Office
U.S. Department of Agriculture
South Building, Room 1031
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Washington, D.C. 20250-9203
Tel: 202-720-4443
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CERTIFICATE OF SERVICE

William Brackston Lee, III d/b/a Laughing Valley Ranch, Respondent
Docket: 24-J-0026

I HEREBY CERTIFY that a true and correct copy of the ***DECISION AND ORDER*** has been furnished and was served upon the following parties on February 3, 2026 by the following:

USDA (OGC) - Electronic Mail

Thomas N. Bolick

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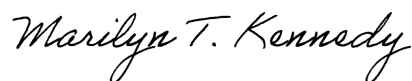
William Brackston Lee, III

d/b/a Laughing Valley Ranch

**(Due to Personally Identifiable
Information, the Respondent's
Address has been Omitted) PII**

LaughingValley@gmail.com

Respectfully Submitted,



Marilyn T. Kennedy
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